

Sughar Singh v. State of U.P.

Allahabad High Court · Division Bench · 27 January 2021 · Writ-C No. 1326 of 2021 · Writ-C No. 1326 of 2021 · **Writ disposed; petitioner relegated to Clause 6.14; coercive action stayed six weeks**

HEADNOTE

Where the consumer does not dispute electricity dues and seeks only an easy-installment facility against a recovery demand, the High Court, without entering the merits, relegates him to a representation under Clause 6.14 of the U.P. Electricity Supply Code, 2005, to be decided by a reasoned speaking order, and stays coercive recovery for six weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Sughar Singh petitioned the Allahabad High Court to quash a recovery demand of Rs. 2,25,554 issued by respondent no. 3, the distribution licensee, and for a mandamus that the electricity dues be accepted in easy installments. Counsel for the licensee submitted that the petitioner did not dispute the bills and was ready to pay, and could therefore approach the licensee under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The Court heard counsel for the petitioner, the licensee, and the State.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for undisputed electricity dues

HOLDING

A consumer who does not dispute the electricity demand and seeks only payment in easy installments is to move a representation under Clause 6.14 of the U.P. Electricity Supply Code, 2005, within two weeks; the licensee shall consider and decide it by an appropriate reasoned speaking order, preferably within four weeks of receipt, and no coercive action shall be taken for six weeks or until that decision, whichever is earlier. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

The Court, without deciding the recovery, directed the petitioner who accepted the dues and sought easy installments to apply under Clause 6.14, with the licensee to pass a reasoned order and coercive action stayed in the meantime. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RS. 2,25,554 RECOVERY DEMAND AND ENTITLEMENT TO INSTALLMENTS UNDER CLAUSE 6.14

The Court expressly declined to enter the merits and left the Clause 6.14 representation to the licensee. ¶ 1